

Notes for PAK301

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Objectives Resolution

- 1- It was the first constitutional document that proved to be the foundation of the constitutional developments in Pak.
- 2- It was moved by Liaqat Ali Khan
- 3- Approved on March 12, 1949
- 4- 1st constitutional assembly came into existence after independence act 1947.
- 5- Members were from all districts whose number was 69 and then increased to 79.
- 6- It clarified that people utilize powers gifted by Allah.
- 7- Resolution give due respect to ~~non~~ minorities and backward societies.
- 8- Objected by Non-Muslims.
- 9- Theocratic state is a state in which there is extreme religious Rule.
- 10- Objectives Resolution is a basic & primary constitutional document.

Constitutional Issues

Constitution is a set of basic principles and framework for governance and exercise of political power and legal authority. (مُؤَسَّسَات)

- 1- Govt. of India act 1935 was promulgated in Pakistan at first.
- 2- After 1946 elections, major issues faced by constitution were

1- Federalism:

Pakistan had 2 territorial parts.

- 1- East Pakistan (now separated after 1971).
- 2- West Pakistan (now full Pakistan).

(1 unit) → East Pakistan had more population & less territory.

(4 units) → west Pakistan had less population & more territory.

⇒ Federalism means separation of territory but maintaining unity.

2- Division of Power:

British rule gave concept of Strong Centre but provinces demand Provincial Rights in 1956 constitution, strong centre adopted

3- Representation:

It was also issue b/w east & west.

Constituent Assembly formed BPC

(basic principle committee) in 12 March 1949

1st BPC report

1. on 26th september 1950

2. Parliament had 2 houses.

3- Lower house based on population

4- Upper house based on representation

~~more rights given to east Pakistan~~

5 East Bengal opposed, Liaquat withdrew it.

2nd BPC Report (Final)

1. on 22nd December 1952

2. 2 houses enjoy equal powers.

3- equality principle not accepted by both.

East & Punjab.

M-Ali Bogra report (Oct 1953)

1- Pakistan have bicameral Legislature (دو ایوانی قانون)

2. Upper house have equal representation

3. Lower house based on population.

4. More representation given to East.

Both parties accepted it.

National language was made both Urdu & Bengali.

West Pak as 1 unit

West Pak (4 units) became 1 unit
on 14 oct 1955.

3- Separate or Joint electorate

- 1 In 1909, Muslims demanded separate electorate by British but minorities didn't accept.
- 2 East decided Joint
- 3 West decided separate
- 4 Result: In 1957 Joint was accepted.

4- National Language issue

- 1 In 1948, Qaid decided Urdu.
- 2 East Bengal opposes.
- 3 Movement started against Urdu in Feb 1952.
- 4 In 1954 both languages accepted.
- 5 In 1971 Urdu was made as National

5- Parliamentary or Presidential:

Conflict was there.

Military takeover in 1958.

In 1962 constitution, Presidential system adopted.

6- Islamic or Secular state:

everyone wanted Islamic State.

Members of congress in CA opposed.

Assembly took time to define exact relationship.

Ulema presented 22 points for religious state.

Decision: There would be a middle

course with modern perspective.

~ Detailed Constitution Process ~

(1947-56)

Constitution is a framework of governance and exercise of power. It give guidelines of relation among units.

Law making is always within its limits.

1. 1st ~~8~~ Constitutional Assembly (CA) meeting was on 11 Aug. 1947 at Karachi.
2. BPC formed in 12 March 1949
3. BPC had 24 members whereas CA had 69 later 79 members
4. For Islamic guidelines Board of Talimat-e-Islamia set up.

1st BPC rep. (26 sep. 1950)

2 houses

upper base on representation

lower base on population.

Head rules:

Head elected by Joint session for 5 years.

President should be Muslim or Non muslim

Assisted by PM and Cabinet.

Responsible to CA.

Cabinet responsible to Houses.

No mention of national language.

Result

✶ Not accepted. ✶

2nd BPC report (22 dec 1952)

- Head would be Muslim.
- Both wings (East & West) have equal rep.
- Upper house 60, 60 | Lower house 200, 200.
- Islamic Advisory board founded (5 members)
- Not mentioned language.

Result:

Punjab especially denied it.

Prime Minister Nazimuddin removed.

3rd report.. M-Ali Bogra (Oct 1953).

Upper house → equal rights

Lower house → More rep. to East.

but equal right in joint session.

Upper 10, 40 (East) / (West)

Lower 165, 135 (~~West~~)

30% members allowed from each zone.

Result

Majority accepted it.

CA was exempted by governor general in oct 1954.

Molvi Tamizuddin challenged it in court.

2nd CA

Ghulam Muhammad called convention on 10 may 1955

WP became on unit on oct 30, 1955.

constitution 1956

CA present constitution in

9 January 1956 --- approved on

29 January 1956 --- enforced on

23 March 1956 !

1956 Constitution

→ It has 234 articles and 6 schedules

→ Name = Islamic Republic of Pakistan.

→ Features include

Parliamentary system, Federal system,

provincial structure, Independent Judiciary,

Rights, Directive principles, Islamic character

1- Parliamentary system:

- ① President had limited powers.
- ① He would be 45 yrs old, Muslim and member of National assembly.
- ① Elected by (NA) and (PA).
- ① He appoint prime minister and can remove him.
- ① Cabinet responsible to NA.
- ① PM as head of govt. assisted by cabinet.
- ① Parliament has only one house.
 - 300 plus 10 women seats reserved
 - seats filled by direct elections.
 - Bills presented to president.
 - NA could control executive.

2- Federal System:

3 lists by constitution

→ Federal

→ provincial

→ Concurrent.

2 provinces were in federation.

3- Provincial structure:

→ Assembly for every province.

→ Powers given to Chief minister & cabinet.

① Independent Judiciary,

Highest court → Supreme court.

then High court & subordinate courts.

② Every citizen have fundamental rights.

③ No law can be made in opposition with Islam.

④ NA decide whether Law is islamic or not.

⑤ Islamic rules combined with modern.

Validity.

From 23 march 1956

to 7 october 1958.

1962 Constitution

1. Military takeover on 7 Oct 1958 & Ayub Khan became chief martial Law Admin.
2. Basic Democracies introduced in 1959.
having 40,000 members.
3. Constitutional commission established in Feb 1960
under chairmanship of Justice Shahabuddin

1- Constitution was announced in 1 march 1962

2- NA & PA elections were in April & May 1962

3- Constitution enforced on 8 June 1962

4- It had 1250 articles and 5 schedules.

5- It was totally presidential

→ President shd be muslim with 40+ age

→ Cabinet responsible to him.

6- National Assembly consist 1 house.

- it had 150 seats + 6 seats.

7- Political parties act was introduced in 1962.

8- Advisory Council for Islamic Ideology consisting of 5-12 members

validity:

8 June 1962 to 25 March 1969

1973 constitution

- 2nd chief martial Law was Yahya Khan in 25 March 1969.
- He again handed power to Zulfikar Ali Bhutto in 20 Dec 1971.
- New constitution was approved on 10th April 1973 and was enforced on 14 August 1973.
- It was totally **parliamentary**
 - ⊙ PM as a head of country which was elected by NA.
 - ⊙ Answerable to NA.
 - ⊙ President shd be 45 age, Muslim, qualified to NA and under PM.
 - ⊙ Parliament had 2 houses
 - Senate:** (upper house) based on equal representation to provinces. / Indirect elections seats 64 63 then 100
 - National Assembly:** (lower house) based on population.

- ① seats 210 now 342
- ① Direct elections.
- ① NA was more powerful than senate
- ⇒ Federal Shariah court added in 1981
- ⇒ Islamic Provisions.
- ⇒ Urdu National language
- ⇒ National Security Council added in 2002

Political History (1947-1971)

GG:

1. Qaid-e-Azam
2. Khwaja Nazimuddin
3. Ghulam Muhammad
4. Iskander Mirza.

President

1. Iskander Mirza

PM:

1. Liaqat Ali Khan
2. Kh. Nazimuddin
3. Muhammad Ali Bogra.

→ 1st Chief martial Law

Ayub Khan

from, 6 Oct 1958 — June 1962

He got himself re-elected in Jan 1965

⇒ 2nd Chief martial Law

Yahya Khan

from 25 March 1969 — 20 Dec 1971

⇒ General elections held in Dec 1970.

⇒ East Pakistan separated in 25 March 1971

(1972 — 2003)

Zulfiqar Ali Bhutto assigned power
of 20th December 1971.

He was 1st president of Pakistan & 1st
civilian Chief Martial Law administrator.

His policies:

1- Nationalization.

2- Labour Policy.

3- 1977 elections.

3rd Martial Law:

Zia-ul-Haq imposed Martial Law on 5-July 1977 to 30 dec 1985

Islamization:

- Sharia benches in 1979.
- Federal Sharia court in 1981, interest-free banking
- Introduced punishments.
- Imposed ushah in 1983.
- New education policy.
- Prayer break.
- establishment of Bat-ul-Mall.

Return to democracy

- Local Bodies election 1979.
- Elections on non-party base Feb 1985.
- 8th constitutional amendment introduced in March 1985

Civilian Rule

(1985-1999)

4th Martial law:

In 1999. by Pervez Musharraf.

~ Geography, land, Boundaries, Neighbours ~

Geography.

⇒ Pakistan is Located in Northwestern part of South Asian Subcontinent.

⇒ Arians 1st came in Pakistan from Centre Asia & Afghanistan.

Location:

Located at 24-37 degree North Latitude
61-75 degree East Longitude.

Territory:

Area is 796098 sq. km.

nature of territory:

North & North West: All mountains

West: Baluchistan Plateau 4000 feet.

Indus Plains: Agricultural region in the middle of Indus Valley.

South East: Deserts like Cholistan & Thar.

Climate : varies from region to region

Seasons:

Summer - May - Sept.

Winter - Nov - Feb

Spring - March - April

Autumn - Sept - Oct.

Population:

growth rate is over 3%.

latest growth percentage is 2.61%.

In 2006, population estimated to be 160 million.

30% population lives in urban areas.

Population of Punjab 56-57%.

" " Sindh 23%.

" " Balochistan 5.3%.

Official literacy rate is 46%.

~ Natural Resources, Agriculture ~

Iron ore — for steel industry

Chromite — for tanning, stain-less steel

Gypsum — for plaster of paris, paint, cement.

sulphur — by chemical industry

Coal — for power generation / fuel.

Oil — Import from Iran & Gulf.

Gas — energy, source of power generation.

Uranium — basic element for atomic power.

Forests:

25% area should be covered with forests

Pakistan has 4 to 5% area.

Agriculture:

⇒ More than 70% live in rural areas

⇒ Over 50% engaged with agro-based activities

⇒ Share of agriculture to GDB is 26%

⇒ RABI: sown in Oct - Nov

obtain in April - May

⇒ KHARIF: sown in May - June

obtain in Oct - Nov.

⇒ LAND reforms in 1959, 72, 77.

~ Industrial Development ~

- ① 4% of India's industry was in Pak.
- ① Industrial Development Board formed in 1948.
- ① PIDC established in 1950.
- ① IDBP established in 1961.
- ① in early 1990's PPP govt. policy changed. They followed the policy of Denationalisation and Privatization.

Promoted free, economy, foreign investment
Foreign direct Investments (FDI). etc.

~ Education in Pakistan ~

- ① In Pakistan, Literacy rate is 46%.
- ① Schools that exist only for papers are ghost schools.
- ① Distance education thro TV, books & Internet.

Foreign policy of Pakistan

U-S: have been friendly but problems developed from time to time on nuclear issue, arms sales, Kashmir, etc.

China: like enemy

U-N:

Pak became part of UN on sep. 30 1947

Pak has enjoyed Security Council Membership for 6 times.

Nuclear Power:

Pakistan has been the champion of nuclear power usage. Pakistan avoided nuclear explosions despite having the knowledge and capability of processing uranium & plutonium.

It was merely for the sake of reaction to India's nuclear reactions.

~ PAKISTAN & Muslim World ~

1st OIC in Rabat 1969

2nd OIC in Lahore 1974 -

RCD - Regional Cooperation Development -
Relations with:

Iran: It was 1st who recognized

Pak. & It's king visited Pak 1st time.

Egypt: Egypt under Nasser had some
reservations due to Pakistan's ties with

the west. Pak - supported Egypt when

it was attacked by Israel in 1956, 67 & 73.

After death of Nasser in 1970, relations
improved.

Afghanistan: Incident on 11 Sept. 2001.

After Taliban, Karzai govt. took responsibility.